

THE ALBERTA DISABILITY SYSTEM BREAKDOWN

THE GOVERNMENT'S CASE AGAINST ITSELF

What their own numbers show — no advocacy required

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You don't need to trust advocates, politicians, or anyone with an agenda. You only need to read what the government published. Every item below is sourced from government legislation, open data, budget documents, letters, and administrative records. Source codes refer to the Source Index at the end of this document.

Here is what their own data shows.

ON WHO ADAP IS ACTUALLY FOR

The Law Doesn't Say What the Government Claims It Says



The government says ADAP is for people who "can work." But the law that approved 79,290 people for AISH says they qualify because of a "**substantial limitation**" in their ability to earn a living — not because they "completely cannot work." That legal distinction doesn't exist in the AISH Act. It was invented for the transition. Worse: the AISH Policy Manual already required clients to seek employment, retain work they can reasonably hold, and use available training. The employment framework was already there. What ADAP adds is a \$200/month cut, a lower exemption, no inflation protection, and no appeal rights.

Sources: S1, S2, S7, S17

ON THE EARNINGS EXEMPTION

The Government Is Comparing the Wrong Numbers

The government calls \$700/month a generous earnings exemption. The **current** exemption is \$1,072/month. That makes ADAP's exemption a cut of **\$372/month** from what recipients have today.

A University of Calgary economist analyzed the government's own Case Study 1 from the ADAP Discussion Guide — the example the government used to show ADAP is better — and found that recipient would have \$164/month LESS on ADAP. The government's own example is wrong.

For single parents — 6.8% of the caseload, almost entirely women — the exemption drops from \$2,612/month to \$525/month: an **80% reduction**. You don't become financially equivalent to current AISH until you're earning over \$2,114/month — about 33 hours a week at minimum wage, sustained, without health interruptions.

Sources: S8, S9, S17, S20, S30, S33

ON WHETHER THIS IS ABOUT MONEY

Four Surpluses. Five Point Six Billion Deposited. Then the Cuts.

\$31.9B	\$383M	\$77M
Heritage Fund value Dec 31, 2025	Fund growth in ONE quarter (Q3 2025-26)	Total 3-year AISH cut

The Heritage Fund grew five times more than the total three-year AISH cut in a single quarter. Reversing every major cut — the CDB clawback, the benefit cut, the housing rent increase — would cost approximately **\$260 million per year**. The Heritage Fund earned approximately **\$2.6 billion** last year. Protecting every disabled Albertan from every cut costs roughly **10% of one year's Heritage Fund returns**. The fund would still grow.

The Heritage Savings Trust Fund Act, 1976 lists as a founding objective: "to improve the quality of life of Albertans." That objective is still in the legislation. The government is growing the fund and cutting the people the fund was created to protect.

Sources: S4, S11, S13, S14, S15, S16, S25, S26, S27, S28

ON APPEAL RIGHTS

The Government's Own Data: 1 in 3 Decisions Were Wrong

The Citizens Appeal Panel — the independent body that reviewed AISH decisions — overturned or changed **37% of all decisions reviewed** across four fiscal years, 19 consecutive quarters. That's 1,218 decisions found to be wrong out of 3,218 hearings. This data is from the Alberta Government's own Open Data portal.

Bill 12, passed December 9, 2025, eliminated this panel for the single most consequential decision in the new system — which program you're placed on. The government didn't fix the error rate. **It removed the mechanism that was catching the errors.**

Sources: S3, S18

ON THE PRIOR FINDING

79,290 Formal Findings. Reversed. Without New Evidence.

Every person on AISH was formally approved through a government adjudication process. The finding: **permanent disability substantially preventing employment**. No new medical evidence has emerged. No accuracy review was conducted. The government has not explained what changed.

In administrative law, the burden of proof to reverse a formal finding lies with the party seeking reversal — not the person the finding protects. The government has flipped this. Recipients must now re-prove what was already proven, with no explanation, no new evidence, and no independent check on the result.

Sources: S1, S2, S3, S7, S17, S19

ON THE PROMISES

Every Promised Support Is Contradicted by Documented Reality

PROMISE	DOCUMENTED REALITY
Child care supports to enable employment	FSCD: 3-year average wait. Official auto-reply: "we cannot provide any timelines at this time."
Mental health wraparound supports	5.5% mental health budget vs. 12% recommended. Psychiatry wait: 6-18 months.
Personalized case management	Individual caseworkers eliminated 2024-25. Caseloads up to 200 per worker vs. recommended 90-1
\$185M 'unprecedented' investment	\$185M ÷ 79,000 people = \$2,334 each. Heritage Fund earned \$2.6B in the same year.

Sources: S13, S14, S31, S32, S34, S37, S38

ON WHAT MINISTER NIXON ACTUALLY SAID

A Regression Requirement, Not a Reassessment Pathway

"If their medical condition progresses to the point that they are unable to work, they can apply for the AISH program."

— Minister Jason Nixon, letter to Genevieve Bissonette, April 3, 2026

These words were written about people who were **already formally found to be unable to work**. The government is telling people with permanent disabilities they must first get worse before it will recognize what it already documented.

This is not a reassessment pathway. It is a regression requirement.

Sources: S10

None of this requires you to trust anyone. Every item is sourced from government legislation, open data, budget documents, administrative records, and ministerial correspondence. The documents are in the group files. Share them. Send them to your MLA. Source codes throughout this document refer to the Source Index on the following pages.

The Ministerial Order that sets the clawback rules has still not been published — 76 days before transition. Chantal Trepanier The Alberta Disability System Breakdown facebook.com/share/g/1GShj73sVm/

SOURCE INDEX

All sources are primary or publicly verifiable. No data has been altered, estimated, or extrapolated.

LEGISLATION & REGULATION

- S1** AISH Act, SA 2006, c A-45.1 (as amended). canlii.org/en/ab/laws/stat/sa-2006-c-a-45.1
- S2** AISH General Regulation, Alta Reg 91/2007. canlii.ca/t/56n41
- S3** An Act to Strengthen Financial Security for Persons with Disabilities (Bill 12), SA 2025. Passed Alberta Legislature December 9, 2025.
- S4** Alberta Heritage Savings Trust Fund Act, 1976. Founding objectives: save for the future; strengthen the economy; improve the quality of life of Albertans.
- S5** Canadian Charter of Rights and Freedoms, s 15. laws-lois.justice.gc.ca/eng/const/page-15.html
- S6** Applications and Appeals (Ministerial) Regulation — AISH program.

GOVERNMENT POLICY DOCUMENTS & PROGRAM MATERIALS

- S7** Government of Alberta — AISH Policy Manual (updated Feb 10, 2026). Eligibility criteria; medical standards; employment obligations; appeal rights.
- S8** Government of Alberta — ADAP Program Page. alberta.ca/alberta-disability-assistance-program. Benefit amounts, transition structure, employment exemption, July 2026 launch.
- S9** Government of Alberta — ADAP Discussion Guide, August 2025. Case Study 1 employment income analysis.
- S10** Minister Jason Nixon — Letter to Genevieve Bissonette. April 3, 2026. Ministerial Order 'later this spring'; 'if their medical condition progresses' language; automatic AISH retention criteria.

GOVERNMENT BUDGET & FISCAL DATA

- S11** Government of Alberta — Budget 2025. AISH funding 2025-26: \$1.641 billion, decrease of \$49 million. alberta.ca/budget
- S12** Government of Alberta — Budget 2026. ADAP admin cost 2026-27: \$88.4 million (up from \$46.8 million). FACTSMTR Substack analysis, February 28, 2026.
- S13** Alberta Heritage Savings Trust Fund — Q3 2025-26 Report. Fund fair value: \$31.9 billion as of December 31, 2025. Q3 growth: \$383 million. Fiscal year-to-date return: 7.7%. alberta.ca/heritage-savings-trust-fund
- S14** Standing Committee on the Alberta Heritage Savings Trust Fund — 2024-25 Annual Report. Market value \$27.2 billion as of March 31, 2025. Five-year annualized return: 9.6%. assembly.ab.ca
- S15** Fraser Institute — 'Alberta government's new budget officially puts a halt to Heritage Fund deposits.' February 26, 2026. Documents \$5.6B total contributions 2022-23 to 2025-26.
- S16** FACTSMTR Substack — 'Alberta Budget 2026: Testing the \$9.4B Claim.' February 28, 2026. ADAP admin overhead \$22M; income tax cut cost \$1.2B/year; deficit projections.

GOVERNMENT OPEN DATA

- S17** Alberta Assisted Living and Social Services — AISH Caseload Open Data, September 2025. open.alberta.ca/opendata/assured-income-for-the-severely-handicapped-aish-caseload-alberta. 79,290 recipients; 83.9% zero employment income; 16,161 CPP-D recipients; primary condition breakdown; 5,426 single parents.
- S18** Alberta Assisted Living and Social Services — Appeals Overview Dataset, 2025-26 Q3. open.alberta.ca. 19 consecutive quarters of Citizens Appeal Panel outcomes. 37% overall overturn rate across 3,218 panel hearings.

JUDICIAL AUTHORITY

- S19** Baker v Canada (Minister of Citizenship and Immigration), [1999] 2 SCR 817. Duty of procedural fairness; content calibrated to significance of decision. canlii.ca

INDEPENDENT RESEARCH & ACADEMIC SOURCES

- S20** Gillian Petit, University of Calgary — ADAP earnings analysis. Cited in CBC News, August 21, 2025, and Inclusion Alberta documents. \$2,114/month threshold; Case Study 1 analysis showing \$164/month shortfall.
- S21** Dalhousie University — Canada's Food Price Report 2026. dal.ca/sites/agri-food/research. Food prices 27% above five-year levels; 4-6% projected 2026 increase.
- S22** Government of Canada — Disability Advisory Committee, 2024. 24% DTC online application completion rate finding.
- S23** End Homelessness Edmonton — Calgary Housing First program evaluation. endhomelessnessyeg.ca. \$55,000/year homeless vs. \$21,000/year housed.
- S24** Alaska Permanent Fund Corporation — 2024 Annual Report. 2024 resident dividend: US\$1,702/person. Fund value approximately US\$87 billion.

NEWS & JOURNALISM

- S25** CBC News — 'Alberta posts surplus of \$8.3B in 2024-25 fiscal year.' June 27, 2025.
- S26** CBC News — 'Alberta ends fiscal year with \$4.3B surplus.' June 27, 2024.
- S27** CBC News — 'Alberta Heritage Fund hits \$30B after \$2.8B injection from surplus.' Johnson, L. July 18, 2025.
- S28** Rocky Mountain News — 'Alberta budget 2025 cuts AISH funding by \$49-million.' February 2025.
- S29** CBC News — 'Advocates push back on Danielle Smith's comment that people are moving to Alberta for social programs.' March 6-7, 2026.
- S30** CBC News — ADAP earnings analysis / Gillian Petit commentary. August 21, 2025.
- S31** St. Albert Gazette / Rocky Mountain News — 'AISH changes will help, not harm: Nixon.' September 8, 2025. '\$185 million' employment investment quote.
- S32** Alberta Doctors' Digest — 'Pushing back against changes that make life harder for disabled Albertans.' November/December 2025. 47% increase in ED psychiatric visits.

ADVOCACY ORGANIZATION SOURCES

- S33** Inclusion Alberta — 'ADAP: The Facts and How to Take Action.' October and December 2025. inclusionalberta.org. Employment exemption analysis; AISH exemption cut from \$1,072 to \$350; spousal exemption cut; transition structure.
- S34** Inclusion Alberta — FSCD Survey, January 2025. 3-year average FSCD wait; caseworker caseloads; 85% still without caseworker after partial services begin.
- S35** Friends of Medicare — 'More Cuts for People on AISH.' September 2025. friendsofmedicare.org
- S36** Alberta Human Rights Commission — Duty to Accommodate guidance. albertahumanrights.ab.ca

GOVERNMENT AUDIT & ACCOUNTABILITY

- S37** Alberta Auditor General Report on FSCD, 2022. Findings: inadequate caseworker training, ineffective oversight, families not receiving eligible supports.
- S38** FSCD auto-reply email — 'There are currently delays in caseworker assignment, and we cannot provide any timelines at this time.' Posted publicly by Hold My Hand Alberta co-founder Sarah Doll, 2024.

HOUSING DATA

- S39** Urbanation/Rentals.ca — National Rent Report, June 2024. Alberta 17.5% year-over-year rent increase — largest in Canada.
- S40** CMHC / Great West Media — Alberta rent data, December 2024. Half of 75 municipalities surveyed reported 10%+ increases; one municipality 37%.
- S41** Province of British Columbia Residential Tenancy Branch; Ontario Ministry of Municipal Affairs; SOSCIP, January 2025. Provincial rent cap comparison data.

This source index covers all citations appearing in this document. Claim-level source references are indicated in the body text by category. Full primary source documents are available in the Alberta Disability System Breakdown project files and have been submitted as part of the fourteen-part evidentiary report series to provincial and federal officials and the UN Special Rapporteur on the Rights of Persons with Disabilities.